

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MAURICE VALERE,

*Plaintiff,*

*-against-*

THE CITY OF NEW YORK,  
POLICE OFFICE JOVANNI JENNNIGS (SHIELD 9258),  
and JOHN DOES 1 and 2,

*Defendants.*  
-----X

Index No.:

Date Purchased:

**SUMMONS**

Plaintiff designates KINGS County  
as the place of trial.

The basis of venue is:  
Location of Incident

Location of Incident:  
99<sup>th</sup> Street and Flatlands Avenue  
County of KINGS

**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
May 10, 2013

  
\_\_\_\_\_  
JESSICA MASSIMI

LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC

*Attorneys for Plaintiff*

80 Maiden Lane, 12th Floor  
New York, New York 10038  
(212) 962-1020

TO: THE CITY OF NEW YORK  
100 Church Street  
New York, NY 10007

POLICE OFFICE JOVANNI JENNNIGS (SHIELD 9258)  
The New York City Police Department  
69<sup>th</sup> Precinct  
9720 Foster Avenue  
Brooklyn, NY 11236

THE NEW YORK CITY POLICE DEPARTMENT  
One Police Plaza  
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MAURICE VALERE,

Index No.:

*Plaintiff,*

**VERIFIED  
COMPLAINT**

*-against-*

THE CITY OF NEW YORK,  
POLICE OFFICE JOVANNI JENNNIGS (SHIELD 9258),  
and JOHN DOES 1 and 2,

*Defendants.*  
-----X

Plaintiff, by his attorneys, **LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, complaining of the Defendants, respectfully alleges, upon information and belief:

**PARTIES, VENUE AND JURISDICTION**

1. At all times herein mention, plaintiff MAURICE VALERE was and still is a resident of the County of KINGS, City and State of New York.
2. This action is brought pursuant to the provision of 42 U.S.C. §1981, §1983, §1985 and 28 U.S.C. §1343 and pursuant to pendent state law claims for assault, battery, excessive force, false arrest, false imprisonment, and intentional infliction of emotional distress and the violation of civil rights. The action arises out of the false arrest, assault and battery of the Plaintiff by Police Officers employed by THE NEW YORK CITY POLICE DEPARTMENT ("NYPD").
3. The cause of action alleged herein arose in the County of the KINGS, City and State of

New York.

4. On May 13, 2012, defendant THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under the laws of the State of New York.
5. On May 13, 2012, defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is a municipal corporation, duly organized and existing under the laws of the State of New York.
6. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK, owned, operated, maintained and controlled the defendant THE NEW YORK CITY POLICE DEPARTMENT and employed the police officers and supervisory officers therein.
7. At all times relevant to the action herein, defendant THE CITY OF NEW YORK hired, screened, trained, instructed, managed and supervised its police officers.
8. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority over THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.
9. Plaintiff has complied with all conditions precedent to the commencement of the within action against defendant THE CITY OF NEW YORK; a Notice of Claim having been served upon the defendant THE CITY OF NEW YORK on May 24, 2012 and within ninety (90) days of the date that the within cause of action having been caused to accrue; thirty (30) days have elapsed and the claim remains unpaid and unadjusted and a Notice of Claim having been served upon the defendant.
10. That plaintiff, according to municipal code 50(h), was produced for said statutory hearing on April 19, 2013.

11. This action was commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.
12. At all times hereinafter mentioned relevant to the action herein, defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is a department of defendant THE CITY OF NEW YORK.
13. On May 13, 2012, the defendant THE CITY OF NEW YORK by virtue of, under and pursuant to the Laws of the State of New York and the Charter, and Administrative code of the City of New York, created and operated a Police Department for the public benefit and protection of its citizens.
14. On May 13, 2012, and at all times relevant to the action herein, defendant THE NEW YORK CITY POLICE DEPARTMENT employed Police Officers and/or detectives that were on duty and were working within the scope and course of their employment as a New York City Police Officers for defendant THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.
15. Defendants John Does 1 and 2 are and were at all times relevant herein, a members of the New York City Police Department (“NYPD”) assigned to the 69<sup>th</sup> Precinct as duly appointed and acting servants, employees and agents of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK. The Doe Defendants were and are at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as agents, servants, and employees of defendant THE CITY OF NEW YORK. The Doe Defendants were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and was otherwise performing and engaging in conduct

incidental to the performance of their lawful functions in the course of their duties. The Doe defendants are sued herein in their official and individual capacities.

16. Defendant POLICE OFFICE JOVANNI JENNNIGS (SHIELD 9258), is and was at all times relevant herein, a member of the New York City Police Department (“NYPD”) assigned to the 69<sup>th</sup> Precinct as a duly appointed and acting servant, employee and agent of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK. Defendant Jennings was and is at all times relevant herein, acting under color of state law in the course and scope of his duties and functions as an agent, servant, and employee of defendant THE CITY OF NEW YORK. Defendant Jennings was acting for, and on behalf of, and with the power and authority vested in him by THE CITY OF NEW YORK and the New York City Police Department, and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties. Defendant Jennings is sued herein in his official and individual capacities.
17. On May 13, 2012, and at all times relevant to the action herein, the defendant police officers, and/or detectives were on duty and were acting under color of State Law and within the scope of their employment for the defendant THE NEW YORK CITY POLICE DEPARTMENT.

#### **RELEVANT FACTS**

18. Plaintiff hereby restates, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same power and force as if fully stated at length below.
19. On May 13, 2012, plaintiff, MAURICE VALERE was lawfully present at or near Flatlands Avenue and East 99<sup>th</sup> Street in the County of KINGS, City and State of New York, where he was outside of a friend’s home with two other individuals.

20. Plaintiff was not engaged in any suspicious or illegal activity.
21. At this time, defendant Jennings and the Doe defendants arrived, and, without any legal justification for doing so, approached plaintiff and searched him.
22. Plaintiff complied with all of the defendants' requests.
23. The search yielded no evidence of guns, drugs, or contraband.
24. Despite the absence of any evidence of wrongdoing on the part of plaintiff, the defendants, including defendant Jennings, began beating plaintiff on his body with their fists and NYPD-issued weapons.
25. Despite the fact that plaintiff complied with all of their requests and was unarmed, defendants continued to beat plaintiff causing him to sustain serious physical injuries.
26. Despite the fact that plaintiff was not engaged in any suspicious or illegal activity, the defendants formally arrested plaintiff and placed him in handcuffs.
27. The defendants, including defendant Jennings, continued to assault and beat plaintiff even after he was placed in handcuffs.
28. The defendants subjected plaintiff to excessive force in part of by the following: violently threatening plaintiff with physical harm; intentionally attempting to cause injury to plaintiff; a vicious assault and battery against plaintiff, placing plaintiff in handcuffs without reason of cause; causing plaintiff to be held at gun point and using unreasonable, unnecessary and excessive force against plaintiff; exercising unreasonable, unnecessary and excessive force during the course of an investigation; committing an unjustified arrest of plaintiff; carelessly employing the use of force in arresting plaintiff; committing a harmful, offensive and un-consented attack upon plaintiff's person; acting outside the scope and authority of prescribed powers and duties; unlawfully interfering with

plaintiff's right to conduct his usual business; and otherwise using great and threatening force and violence against plaintiff.

29. Plaintiff was then taken to a local area precinct believed to be the 69<sup>th</sup> Precinct where he was held for several hours before he was taken to Brookdale Hospital to receive treatment for the injuries he sustained at the hands of the defendants.
30. Plaintiff was then taken to Kings County Central Booking where he was held for several more hours.
31. The decision to arrest plaintiff was objectively unreasonable under the circumstances.
32. That the acts and conduct constituting the false arrest and false imprisonment consisted in part of the following; unlawfully and intentionally detaining and confining plaintiff against his will and without his consent; unlawfully and intentionally detaining and confining plaintiff without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiff through the use of force; unlawfully arresting plaintiff and placing plaintiff in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiff.
33. That plaintiff was conscious of the false arrest and confinement.
34. While in custody, plaintiff was then arraigned on a criminal complaint and charged with multiple offenses pursuant to false information and allegations supplied by the defendant officers, and sworn to in a criminal complaint by defendants.
35. The factual allegations sworn to by defendants against the plaintiff were materially false and deliberately made to justify the illegal arrest and assault by the defendants against the plaintiff.



36. The factual allegations sworn to by defendants against plaintiff were materially false and deliberately made to justify the illegal search, arrest, and excessive force perpetrated by the defendants against plaintiff.
37. It was objectively unreasonable for the defendants to arrest plaintiff, as there was no evidence that he had engaged in any unlawful conduct.
38. At no time did there exist sufficient cause to seize or arrest plaintiff, nor could the defendants have reasonably believed that such cause existed.
39. At no time did there exist any basis to utilize any level of force against the plaintiff, much less the force actually employed, nor could any of the defendants have reasonably believed that such force was necessary.
40. At no time did any of the individual defendants take any steps to intervene in, prevent, or otherwise limit the aforementioned conduct engaged in against the plaintiff
41. The individual defendants intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the defendants who engaged in the misconduct engaged herein as required.
42. That at all relevant time mentioned herein, the defendants were on duty and acting within the scope of their employment, and under color of law and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

**AS AND FOR A FIRST CAUSE OF ACTION  
ON BEHALF OF MAURICE VALERE**

43. Plaintiff hereby restates, reiterates and realleges each of the foregoing allegations with the same power and force as if fully stated at length below.
44. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility supervision, and authority over THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondent superior*.
45. On May 13, 2012 at the aforementioned location, Plaintiff, MAURICE VALERE was detained and held under the imprisonment and control of the defendants under false pretenses.
46. That on or about May 13, 2012, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the Plaintiff, MAURICE VALERE, without warrant, authority of law or probable cause therefore.
47. That the acts and conduct constituting the false arrest and false imprisonment consisted in part of the following; unlawfully and intentionally detaining and confining Plaintiff MAURICE VALERE against his will and without his consent; unlawfully and intentionally detaining and confining Plaintiff without privilege, probable cause or valid legal process; unlawfully detaining and confining Plaintiff through the unlawful arrest of

Plaintiff; unlawfully detaining and confining Plaintiff through the use of force; unlawfully arresting Plaintiff and placing Plaintiff in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of Plaintiff.

48. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
49. That Plaintiff MAURICE VALERE was conscious of the confinement.
50. That as a direct, sole and proximate result of the false arrest and imprisonment, Plaintiff MAURICE VALERE was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal and business reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.
51. As a result thereof, Plaintiff MAURICE VALERE was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017(c).

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT AND  
BATTERY ON BEHALF OF MAURICE VALERE**

52. Plaintiff hereby restates, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same power and force as if fully stated at length below.
53. That on or about May 13, 2012, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, individually and in

their official capacities, acting under color of law, deprived Plaintiff MAURICE VALERE of his state constitutional rights, including the right to due process of law, freedom of speech and security against unreasonable searches and seizures.

54. That on or about May 13, 2012, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, without plaintiff's consent willfully, wantonly, maliciously, and intentionally committed assault and battery upon the Plaintiff, MAURICE VALERE, when he was improperly grabbed, handcuffed and thrown, humiliated while under the custody and control of THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

55. That the acts and conduct constituting the assault and battery consisted in part of the following: violently threatening Plaintiff with physical harm; intentionally attempting to cause injury to Plaintiff; a vicious assault and battery against Plaintiff, placing Plaintiff in handcuffs without reason or cause; using unreasonable, unnecessary and excessive force against Plaintiff; exercising unreasonable, unnecessary and excessive force during the course of an investigation; committing an unjustified arrest of Plaintiff; carelessly employing the use of force in arresting Plaintiff; committing a harmful, offensive and unconsented attack upon Plaintiff's person; acting outside the scope and authority of prescribed powers and duties; unlawfully interfering with Plaintiff's right to conduct his usual business; and otherwise using great and threatening force and violence against the Plaintiff.

56. That as a direct, sole a proximate result of the assault and battery, Plaintiff was caused to

and did sustain serious, personal injuries, pain and suffering, humiliation and embarrassment, emotional and mental distress, inconvenience, and loss of personal and business income.

57. On May 13, 2012, while Plaintiff, MAURICE VALERE was present in the aforesaid location, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, searched, battered, handcuffed and falsely arrested by Defendants and was caused to sustain severe and permanent injuries.

58. That on May 13, 2012, Plaintiff, MAURICE VALERE was transported to a local area precinct of the NEW YORK CITY POLICE DEPARTMENT by defendant police officers and was further caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, searched, battered, handcuffed and falsely arrested by Defendants and was caused to sustain severe and permanent injuries.

59. The aforementioned occurrence took place due to the negligence of the Defendants, their servants, agents, employees, licensees, independent contractors and/or police officers, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

60. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendants, and each of them, their servants, agents, employees, licensees, independent contractors and/or police officers in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence physically detained, assaulted,

battered, and falsely arrested.

61. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.
62. That by reason of the foregoing, Plaintiff MAURICE VALERE was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff MAURICE VALERE has been caused to incur and will continue to incur expenses for medical care and attention; and as a result Plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.
63. That by reason of the foregoing, Plaintiff MAURICE VALERE was damaged in an amount that exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION  
ON BEHALF OF MAURICE VALERE**

64. Plaintiff hereby restates, reiterates and realleges each of the foregoing paragraphs with the same power and force as if fully stated at length below.
65. That on or about May 13, 2012, due to the negligence of the defendants, and each of them, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of THE NEW YORK CITY POLICE DEPARTMENT, individually and in their official capacities, acting under color of law, deprived Plaintiff of his state constitutional rights, including the right to due process of law, freedom of speech and security against unreasonable searches and seizures, and

security against excessive force.

66. That by reason of the foregoing, Plaintiff MAURICE VALERE was damaged in an amount that exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION  
FOR VIOLATION OF TITLE 42 OF THE UNITED STATES CODE SECTION 1983 ON  
BEHALF OF PLAINTIFF**

67. Plaintiff hereby restates, reiterates and realleges each of the foregoing paragraphs with the same power and force as if fully stated at length below.

68. In engaging in the conduct described, falsely arresting, falsely imprisoning, and harassing plaintiff, MAURICE VALERE, defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, deprived plaintiff of his civil rights pursuant to Title 42 U.S.C.A. § 1983.

69. In engaging in the conduct described, falsely arresting, falsely imprisoning, and harassing plaintiff, MAURICE VALERE, defendants deprived plaintiff of his civil rights pursuant to Title 42 U.S.C.A. § 1983.

70. That the defendants acted under color of State law.

71. That the force used by defendants violated Plaintiff's right against excessive force and unreasonable search/seizure.

72. That the aforementioned misuse of authority and power by the police officers was intentional, reckless and egregious and shocking to the conscience. As a direct result of defendants' actions, plaintiff, MAURICE VALERE was caused to undergo the humiliation and indignities resulting from being compelled to engage in the physical contact and unlawful confinement described, against his will; and was caused to and will

continue to undergo and endure severe mental anguish and humiliation and hardship as a consequence thereof.

73. As a direct result of defendant's actions, plaintiff suffered a denial of his federal statutory rights, constitutional rights and privileges. Such deprivations were in violation of the rights secured to plaintiff, MAURICE VALERE by the Fourth and Fourteenth Amendments of the United States Constitution and by Title 42 U.S.C.A § 1983.

74. As a result thereof, Plaintiff was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017(c).

**AS AND FOR A FIFTH CAUSE OF ACTION  
FOR VIOLATION OF TITLE 42 OF THE UNITED STATES CODE SECTION  
1983 ON BEHALF OF PLAINTIFF**

75. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

76. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

77. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through individual defendants, had in effect actual and/or *de facto* policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct alleged of the individual defendants.

78. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise or discipline its employees and police officers, including the individual defendants named herein, concerning the correct practices in having probable cause and/or reasonable suspicion to detain a person, and then permit detention, inflict abuse and excessive force upon said person, batter and assault and sustain a false



arrest, thereby permitting the individual defendants to be in a position to violate plaintiff's rights.

79. Defendant THE CITY OF NEW YORK, being aware that such lack of training, supervision, and discipline leads to improper conduct by its employee police officers, acted with deliberate indifference in failing to establish a program of effective training, supervision and discipline. Defendant THE CITY OF NEW YORK is aware of the persistent and substantial risk of improper and incorrect arrest and detention, and effective training, supervision, and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens and which are officially tolerated by defendant THE CITY OF NEW YORK. Such policies, practices, customs or usages were the direct and proximate cause of the harm to the plaintiff, in violation of plaintiff's rights as guaranteed by 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

80. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

81. Defendant had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put in place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law

enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

82. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, detentions, malicious prosecution, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiff's arrest.
83. All of the acts or omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.
84. The aforementioned customs, practices, procedures, and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:
- a. Using excessive force on individuals, including but not limited to those who have already been handcuffed;
  - b. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
  - c. Discouraging police officers from reporting the corrupt or unlawful acts of others;
  - d. Retaliating against officers who report police misconduct; and

- e. Failing to intervene to prevent the above-mentioned practices when such intervention is reasonably available.

85. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following, non-exhaustive list of civil actions:

- a. *Thompson v. City of New York*, 10-CV-3603 (ARR) (SMG) (E.D.N.Y.);
- b. *Lotorto v. City of New York*, 10-CV-1223 (ILG) (JMA) (E.D.N.Y.);
- c. *Zabala v. City of New York*, 37711/2010 (Sup. Ct. Kings Co.);
- d. *Ashe v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- e. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- f. *Moise v. City of New York*, 09-CV-9855 (DC) (JLC) (S.D.N.Y.);
- g. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (S.D.N.Y.);
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207;
- i. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.);
- j. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.);
- k. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.);
- l. *Powers v. City of New York*, 04-CV-2246 (NGG) (E.D.N.Y.);
- m. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.);
- n. *Nonnemann v. City of New York*, 02-CV-0131 (JSR) (AJP) (S.D.N.Y.);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.);
- p. *Barry v. New York City Police Department*, 01-CV-10627 (CBM) (S.D.N.Y.);
- q. *Walton v. Safir*, 99-CV4430 (AKH) (S.D.N.Y.);

r. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD) (S.D.N.Y.);

s. *Ariza v. City of New York*, 93-CV-5287 (CPS) (E.D.N.Y.),

86. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city of the illegal conduct of the kind now charged.

87. It is therefore, axiomatic that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

88. As a direct result of defendant's actions, plaintiff suffered a denial of his federal statutory rights, constitutional rights and privileges. Such deprivations were in violation of the rights secured to plaintiff, MAURICE VALERE by the Fourth and Fourteenth Amendments of the United States Constitution and by Title 42 U.S.C.A § 1983.

89. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress,

great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A SIXTH CAUSE OF ACTION  
FOR ATTORNEYS' FEES**

90. Plaintiff hereby restates, reiterates and realleges each of the foregoing paragraphs with the same power and force as if fully stated at length below.

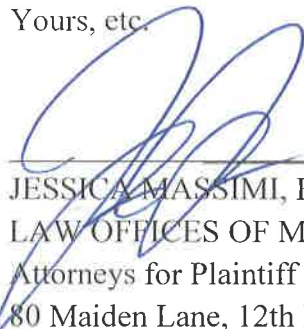
91. Pursuant to Title 42 U.S.C.A § 1983 plaintiff is entitled to recover reasonable attorneys fees for the violation of said statute.

92. As a result thereof, Plaintiff was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017(c).

**WHEREFORE**, Plaintiff demands judgment against the defendants, severally and jointly, in the foregoing Causes of Action in an amount which exceeds the jurisdictional limits of all lower Courts, together with attorney fees pursuant to 42 U.S.C.A. § 1988, the costs and disbursements of this action, with interest from the date of incident, and such other and further relief as the courts deems just and proper.

Dated: New York, New York  
May 10, 2013

Yours, etc.



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JESSICA MASSIMI, ESQ.

LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC  
Attorneys for Plaintiff  
80 Maiden Lane, 12th Floor  
New York, New York 10038  
(212) 962-1020

## VERIFICATION

**JESSICA MASSIMI**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, **MAURICE VALERE**, in the action within. I have read the annexed

## SUMMONS and COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York  
May 10, 2013

Yours, etc.



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JESSICA MASSIMI  
LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC  
*Attorneys for Plaintiff*  
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